

ORDER SHEET**IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT****Case No:** Crl. Misc. No. 7494-B/2013

Muhammad Ramzan.

The State etc.

Versus

S.No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties of counsel, where necessary.
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3. 3.7.2013

Mr. Nadeem Siddiqui, Advocate for the petitioner.
 Mr. Muhammad Amjad Rafique, Deputy Prosecutor
 General with Muhammad Latif, A.S.I. with record.
 Mr. Muhammad Farid ul Hassan, Advocate for the
 complainant.

Through this petition, Muhammad Ramzan petitioner
 has sought post arrest bail in case F.I.R. No. 295 dated
 2.6.2010 registered under sections 302 P.P.C. at Police
 Station Hujra Shah Muqem, District Okara.

2. Briefly, the prosecution case is that on
 01.06.2010 at about 7.00 p.m, the complainant was out
 of the house due to professional engagements, whereas
 his son namely Muhammad Nawaz was busy to look
 after the fields, whereupon the petitioner armed with
 rifle 7-MM along with two unknown persons, who were
 also armed with deadly weapons came there with the
 intention to commit "Qatl" of his son. The petitioner
 raised Lalkara that today no one should escape the son
 of the complainant and made fire upon him, which hit
 the petitioner on the abdomen on the right side of
 umbilicus and crossed from his back, who fell on the
 ground. On hearing the voice of firing, Gulzar Amin
 and Riaz came there, who witnessed the occurrence and
 the accused persons fled away from the spot.
 Subsequently, said Nawaz injured succumbed to the



injuries and on the application of the complainant, offence under section 302 P.P.C. was added.

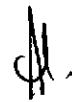
3. Learned counsel for the petitioner contends that the petitioner has been implicated in this case with *malafide* intention as according to the contents of FIR the complainant was not present at the place of occurrence; that during the investigation, the petitioner was found innocent on the medical ground which was not corroborating with the complainant version; that the FIR was lodged after the delay of two days which has not been explained in the FIR; that there is no direct incriminating material available on record to connect the petitioner with the commission of alleged offence; that the petitioner is behind the bars for more than two years and as such he is entitled for bail even on statutory ground.; that challan has been submitted in the court and the trial is in progress as such the petitioner is entitled for grant of bail.

4. On the other hand, learned Law Officer assisted by the learned counsel for the complainant has vehemently opposed the bail petition by submitting that the petitioner has specifically named in the F.I.R. for causing murder of Muhammad Nawaz; that rifle has been recovered from the petitioner; motive has been explained in the F.I.R. which connects him with the commission of alleged offence; challan has been submitted in the court and the trial is in progress; that the offence with which the petitioner has been charge falls within the prohibitory clause of Section 497 Cr.P.C. as such he is not entitled to any concession.



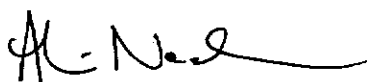
5. I have heard the learned counsel for the parties and have gone through the available record of the case.

6. The petitioner is directly charged in promptly lodged F.I.R. The occurrence was seen by two prosecution witnesses whose statements under section 161 Cr.P.C. have been recorded without any inordinate delay. So far as delay in conclusion of the trial is concerned the order sheet placed on record reveals that charge was framed on 24.8.2011 in a private complaint and thereafter prosecution witnesses remained present on each and every date of hearing and their statements could not be recorded due to non-availability of the learned defence counsel. Later on 22.3.2012 examination-in-chief of the complainant as well as the witnesses was got recorded and case was adjourned on the request of defence counsel and thereafter the case could not be proceeded merely due to non-availability of the learned defence counsel. No doubt the petitioner has remained in jail for a period of more than two years and his case is attracted by third proviso of Section 497 (1) Cr.P.C. but bail under the same proviso can be refused to the accused by the court on the ground that the delay in the conclusion of the trial had occasioned on account of any act or omission of the accused or any other person acting on his behalf as provided in third proviso of Section 497 (1) Cr.P.C. and the ground of delay in conclusion of trial is not available to the petitioner as record reveals that PWs were not cross-examined by the learned defence counsel and request for adjournment was made by defence side. The offence under section 302 P.P.C. with which the



petitioner has been charged falls within the prohibitory clause of Section 497 Cr.P.C. The sufficient incriminating material is available on record to connect the petitioner with the commission of alleged offence.

7. For what has been discussed above, I find that the petitioner cannot be released on bail even on the statutory ground. As from the tentative assessment of the available material, prima facie, the petitioner is connected with the commission of offence as alleged by the prosecution. Resultantly, this petition has no force and the same is hereby *dismissed*.


(Aalia Neelum)
Judge

Approved for reporting.


Judge


Hemid/*